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TITLE 26. HEALTH AND HUMAN SERVICES

PART 1. HEALTH AND HUMAN SERVICES COMMISSION

CHAPTER 558. LICENSING STANDARDS FOR HOME AND COMMUNITY SUPPORT SERVICES AGENCIES

SUBCHAPTER C. MINIMUM STANDARDS FOR ALL HOME AND COMMUNITY SUPPORT SERVICES AGENCIES

DIVISION 3. AGENCY ADMINISTRATION

§558.246. Personnel Records.

(a) An agency must maintain a personnel record for an employee and volunteer. A personnel record may be maintained electronically if it meets the same requirements as a paper record. All information must be kept current. A personnel record must include the following:

- (1) a signed job description and qualifications for each position accepted, or a signed statement that the person read the job description and qualifications for each position accepted;
- (2) an application for employment or volunteer agreement;
- (3) verification of license, permits, references, job experience, and educational requirements, as conducted by the agency to verify qualifications for each position accepted;
- (4) performance evaluations and disciplinary actions;
- (5) the signed statement about compliance with agency policies required by §558.245(b)(10) of this division (relating to Staffing Policies), if applicable; and
- (6) for an unlicensed employee and unlicensed volunteer whose duties would or do include face-to-face contact with a client:
 - (A) a printed copy of the results of the initial and annual searches of the nurse aide registry (NAR) and employee misconduct registry (EMR) obtained from the HHSC website; and

(B) documentation that the employee, in accordance with §558.247(a)(4) of this division (relating to Verification of Employability and Use of Unlicensed Persons), or volunteer, in accordance with §558.247(b)(4) of this division, received written information about the EMR.

(b) An agency may keep a complete and accurate personnel record for an employee and volunteer in any location, as determined by the agency. An agency must provide personnel records not stored at the site of a survey upon request by a HHSC surveyor, as specified in §558.507(c) of this chapter (relating to Agency Cooperation with a Survey).

Source Note: The provisions of this §558.246 adopted to be effective February 1, 2002, 26 TexReg 9159; amended to be effective June 1, 2006, 31 TexReg 1455; amended to be effective January 15, 2009, 34 TexReg 254; amended to be effective September 1, 2010, 35 TexReg 7879; transferred effective May 1, 2019, as published in the April 12, 2019, issue of the Texas Register, 44 TexReg 1893; amended to be effective April 25, 2021, 46 TexReg 2427.